

- a) resupply of the Services; or
- b) cost of having the Services resupplied.

The Client acknowledges that laws may imply certain conditions and warranties in this Agreement and confer certain rights and remedies on the Client that cannot be excluded or modified ("**Rights**"). This Agreement does not exclude or modify any of those Rights if to do so would contravene a law or make any part of this Agreement void.

12.4 DISCLAIMER. TO THE EXTENT PERMITTED BY LAW, CONVERA EXPRESSLY DISCLAIMS ANY REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO ANY WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT AND PERFORMANCE.

12.5 LIMITATION OF LIABILITY. THE CLIENT AGREES THAT CONVERA WILL NOT BE LIABLE TO THE CLIENT FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR EXEMPLARY DAMAGES, LOSS OF PROFITS, LOSS OF BUSINESS OPPORTUNITIES, LOSS OF AGREEMENTS OR CONTRACTS, LOSS OF ANTICIPATED SAVINGS, LOSS OF OR DAMAGE TO GOODWILL, LOSS OF REPUTATION OR LOSS OF USE OF OR CORRUPTION OF SOFTWARE, DATA OR INFORMATION, ARISING FROM ANY PROVISION OF THE SERVICES OR IN CONNECTION WITH ANY FAILURE OR PERFORMANCE, ERROR, OMISSION, INTERRUPTION, DEFECT, DELAY IN OPERATION OR TRANSMISSION, COMPUTER VIRUS, LINE OR SYSTEM FAILURE (EVEN IF CONVERA HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES). EXCEPT TO THE EXTENT CONTEMPLATED UNDER CLAUSE 4.5 (INTELLECTUAL PROPERTY INDEMNITY) AND TO THE EXTENT PERMITTED BY LAW, UNDER NO CIRCUMSTANCES WILL CONVERA'S LIABILITY TO THE CLIENT OR ANY THIRD PARTY FOR ANY DAMAGES OR LOSSES OF ANY KIND WHATSOEVER (INCLUDING ALL INDEMNIFIED AMOUNTS), EXCEED THE SUM OF:

- a) THE SGD VALUE OF THE RELEVANT TRANSACTION AS OF THE TRANSACTION DATE; AND
- b) THE AMOUNT OF ANY FEE OR COMMISSION CHARGED AND COLLECTED BY CONVERA IN CONNECTION WITH THE RELEVANT TRANSACTION.

13. GST

13.1 Any consideration payable or to be provided for a supply of the Services does not include any amount on account of GST. If GST is payable on any supply of the Services, the recipient must pay to Convera an additional amount equal to the GST payable on the supply of those Services, provided that Convera first issues a tax invoice.

14. FOREIGN CURRENCY CHEQUE PURCHASE

14.1 Purchase and Conversion of Foreign Currency Cheque. Convera may agree to purchase and convert into SGD, or some other currency, a foreign currency cheque(s) that the Client has received in its name and delivered to Convera. The Client acknowledges and agrees that Convera may refuse to accept any foreign currency cheque at any time and for any reason. The Client further acknowledges and agrees that Convera may request additional information satisfactory to Convera, in its sole discretion, that the Client has the authority to deliver the foreign currency cheque to Convera for purposes of foreign currency conversion and negotiation.

14.2 Endorsement. Any foreign currency cheque(s) delivered to Convera must be endorsed, without restriction or qualification, by an Authorised Person and state the following:

"Pay to the order of: Convera Singapore Pte Limited"

14.3 Non-negotiable Cheque(s). In the event that a foreign currency cheque(s) is returned to Convera as non-negotiable, returned for insufficient funds or otherwise not accepted by Convera depository financial institution, such cheque(s) will be returned to the Client and the Client agrees to immediately reimburse Convera for amounts delivered to the Client by Convera in connection with the foreign currency cheque(s) purchase, plus any charges or fees that Convera may have incurred.

14.4 Lost, Stolen or Destroyed Cheque(s). In the event that a foreign currency cheque(s) is lost, stolen or destroyed in transit during the clearing process, Convera will promptly notify the Client after being advised of any such loss, theft or destruction. Convera will provide the Client with a letter certifying that Convera has not received value for